

Document

Exhibit 10.18

In this Exhibit 10.18, the notation “§ 93; § 221” identifies certain information that has been excluded because it is both not material and is the type that the registrant treats as private or confidential.

Amended and Restated Deed (RPA)

12 December 2024

PAYPAL (EUROPE) S.; R.L. ET CIE, S.C.A.

as

Receivables Manager and

Seller

PAYPAL UK LTD

as

Receivables Manager

ALPS PARTNERS S.; R.L.

as

Purchaser

BNY MELLON CORPORATE TRUSTEE SERVICES LIMITED

as

Security Agent

AVEGA S.; R.L.

as

Back-Up Receivables Manager Facilitator

ALPS PARTNERS (HOLDING) S.; R.L.

as

Class C Lender

DEED OF AMENDMENT AND RESTATEMENT

in relation to

the Receivables Purchase Agreement

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THIS DEED

(this

Deed

) is dated 12 December 2024 and made between:

(1)

PAYPAL (EUROPE) S.À R.L. ET CIE, S.C.A.

, a corporate partnership limited by shares (

société en commandite par actions

) incorporated under the laws of the Grand Duchy of Luxembourg (

Luxembourg

), having its registered office at 22-24 Boulevard Royal, L-2449 Luxembourg, Luxembourg and registered with the Luxembourg trade and companies register under number B118.349, acting through and represented by its managing general partner PayPal (Europe) S.à r.l., a private limited liability company (

société à responsabilité limitée

) incorporated under the laws of Luxembourg, having its registered office at 22-24 Boulevard Royal, L-2449 Luxembourg, Luxembourg and registered with the Luxembourg trade and companies register under number B127.485 (a

Receivables Manager

and the

Seller

);

(2)

PAYPAL UK LTD

, a private limited company incorporated under the laws of England and Wales (registered number 14741686), having its registered office at Whittaker House, Whittaker Avenue, Richmond-Upon-Thames, Surrey, United Kingdom, TW9 1EH (a

Receivables Manager

);

(3)

ALPS PARTNERS S.À R.L.

, a private limited liability company (

société à responsabilité limitée

) incorporated under the laws of Luxembourg, with its registered office at 2, rue Edward Steichen, L- 2540 Luxembourg, Luxembourg and registered with the Luxembourg trade and companies register (

(C) Pursuant to a deed of accession dated 31 October 2023, PayPal UK Ltd became a party to the A&R Receivables Purchase Agreement as an Additional Receivables Manager.
(D) Pursuant to a deed of amendment dated 14 November 2023, the A&R Receivables Purchase Agreement was amended as set out therein.

(E) Pursuant to a deed of amendment dated 12 December 2023, the A&R Receivables Purchase Agreement was further amended as set out therein.

(F) Pursuant to a deed of amendment dated 17 September 2024, the A&R Receivables Purchase Agreement was further amended as set out therein.

(G) The Parties now wish to further amend and restate the A&R Receivables Purchase Agreement in accordance with the terms of this Deed.

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(H) The Security Agent is entering into this Deed on the instructions of (i) the Instructing Creditors (as defined in the Master Framework Agreement) pursuant to and in accordance with a deed of accession, amendment and restatement relating to, amongst others, the Master Framework Agreement dated on or about the date hereof (the

MFA Deed of Amendment and Restatement

) and (ii) the Class C Lender pursuant to and in accordance with Clause 7 (

The Security Agent

) of this Deed.

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IT IS AGREED

as follows:

1. Definitions and interpretation

1.1 Definitions

In this Deed:

Amended and Restated Receivables Purchase Agreement

means the Receivables Purchase Agreement, as amended and restated in the form set out in Schedule 1

(

Form of Amended and Restated Receivables Purchase

Agreement

);

December 2024 Effective Date

has the meaning given to such term in the MFA Deed of Amendment and Restatement; and

Receivables Purchase Agreement

means the A&R Receivables Purchase Agreement, as further amended on 14 November 2023, 12 December 2023 and 17 September 2024.

1.2 Incorporation of defined terms

Capitalised terms in this Deed shall, except where the context otherwise requires or where otherwise defined in this Deed, have the meanings given to them in Schedule 22 (

Definitions

) of the Amended and Restated Receivables Purchase Agreement, and this Deed shall be construed in accordance with the principles of construction set out in Clause 1 (

Definitions and

Interpretation

) of the Amended and Restated Receivables Purchase Agreement.

1.3 Designation as Transaction Document

Each of the Parties designates this Deed as a Transaction Document.

2. Amendment and restatement

2.1 With effect from the December 2024 Effective Date and in accordance with Clause 29 (

Amendments and Waivers

) of the Receivables Purchase Agreement, the Receivables Purchase Agreement shall be amended and restated in the form of the Amended and Restated Receivables Purchase Agreement.

3. Representations and Warranties

3.1 On the December 2024 Effective Date, the Seller represents to the Purchaser that it has had more than five (5) years of experience in originating and underwriting consumer credit receivables as of December 2024.

3.2 On the December 2024 Effective Date the Seller makes the

representations and warranties in the form set out in Part B of Schedule 2 (

Seller Representations

) to the Amended and Restated Receivables Purchase Agreement to the Purchaser and the Security Agent.

3.3 On the December 2024 Effective Date the Purchaser makes the representations and warranties in the form set out in Part C of Schedule 2 (

Purchaser Representations

) to the Amended and Restated Receivables Purchase Agreement to the Seller and the Security Agent.

3.4 For the purposes of this Clause 3 (

Representations and Warranties

), references to the Transaction Documents; in Part B of Schedule 2 (

Seller Representations

) to the Amended and Restated Receivables Purchase Agreement or Part C of Schedule 2 (

Purchaser Representations

) to the Amended and Restated Receivables Purchase Agreement shall be construed to include this Deed, the Receivables Purchase Agreement (immediately prior to its amendment and restatement pursuant to this Deed) and the Amended and Restated Receivables Purchase Agreement.

4. Continuing obligations

4.1 The provisions of the Receivables Purchase Agreement and the other Transaction Documents shall, save as amended and restated by this Deed, continue in full force and effect and nothing in this Deed shall constitute or be construed as an amendment, waiver or compromise of any other term or condition of the Transaction Documents or any of the Parties' rights in relation to them which for the avoidance of doubt shall continue to apply in full force and effect.

4.2 References in the Receivables Purchase Agreement or in any other Transaction Document (other than in Clause 3.4 (

Representations and Warranties

) of this Deed) to the Receivables Purchase Agreement, this Agreement, hereof, hereunder and expressions of similar import shall, on and from the December 2024 Effective Date, be deemed to be references to the Amended and Restated Receivables Purchase Agreement.

4.3 Each of the Parties hereto acknowledges and agrees that the amendments effected pursuant to this Deed have been effected in accordance and compliance with the relevant provisions in the Receivables Purchase Agreement (and that they shall be estopped from asserting otherwise after the December 2024 Effective Date).

5. Incorporation of terms

The provisions of Clauses 26 (

Confidentiality

), 29 (

Amendments and Waivers

), 31 (

Notices

), 32 (

Bail-In

), 33 (

Third Party Rights

), 34 (Severability

) and 36 (

Limited Recourse and Non-petition

) of the Receivables Purchase Agreement shall be incorporated into this Deed as if set out in full in this Deed and as if references in those clauses to "this Agreement" are references to this Deed.

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6. Further assurance

The Parties hereto agree that they will co-operate fully to (and the Purchaser will use best efforts to provide relevant information and support to the Seller and each Receivables Manager such that the Seller and each Receivables Manager shall) do all such further acts and things and execute any further documents that may be necessary or desirable to give full effect to the transactions contemplated by this Deed (but subject always to the provisions of Clauses 8 (

Notification of Sales

) and 27 (

Data Protection

) of the Receivables Purchase Agreement).

7. The Security Agent

7.1

Class C Lender direction to Security Agent

The Class C Lender hereby authorises and directs the Security Agent to execute this Deed in order to effect the amendment and restatement of the Receivables Purchase Agreement in accordance with this Deed and to take any action as may be necessary in connection with, or in order to give effect to this Deed including, without limitation, consenting to the Purchaser entering into this Deed.

7.2

Discharge and exoneration of the Security Agent's liability in relation to this Deed

The Class C Lender discharges and exonerates the Security Agent from any and all liability for which it may or may have become responsible under the Transaction Documents in connection with this Deed (including but not limited to the execution by the Security Agent and the Purchaser of this Deed).

7.3

Waiver of any claim against the Security Agent

The Class C Lender irrevocably waives any claim that it may have against the Security Agent arising as a result of any loss or damage which it may suffer or incur as a result of the Security Agent acting upon the direction in Clause 7.1 (

Class C Lender direction to Security Agent

) of this Deed (including but not limited to circumstances where it is subsequently found that the direction in Clause 7.1 (

Class C Lender direction to Security Agent

) of this Deed is not valid or binding) and the Class C Lender further confirms that it will not seek to hold the Security Agent liable for any such loss or damage.

7.4

Indemnity in favour of Security Agent

The Class C Lender expressly agrees and undertakes to indemnify and hold harmless the Security Agent from and against all losses, liabilities, damages, costs, charges and expenses which may be suffered or incurred by it as a result of any claims (whether or not successful, compromised or settled), actions, demands or proceedings brought against the Security Agent and against all losses, costs, charges or expenses (including legal fees) which the Security

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Agent may suffer or incur which in any case arise as a result of the Security Agent acting in accordance with the direction in Clause 7.1 (

Class C Lender direction to Security Agent

) of this Deed and the Transaction Documents.

7.5

Approval of every modification in respect of the rights of the Class C Lender necessary to give effect to this Deed

The Class C Lender approves every modification and amendment (and the implementation thereof) in respect of their rights relating to the Transaction Documents resulting from or to be effected by the modifications, authorisations and determinations referred to in the direction in Clause 7.1 (

Class C Lender direction to Security Agent
) of this Deed.

8. Counterparts

This Deed may be executed in any number of counterparts and by each Party on single counterparts. Each counterpart is an original, but all counterparts shall together constitute one and the same instrument. Delivery of a counterpart of this Deed by e-mail shall be an effective mode of delivery.

9. Law and jurisdiction

9.1. Governing law

This Deed and any non-contractual obligations arising out of or in connection with it shall be governed by, and interpreted in accordance with, English law.

9.2. The English courts shall have exclusive jurisdiction in relation to all disputes arising out of or in connection with this Deed (including claims for set-off and counterclaims), including disputes arising out of or in connection with (i) the creation, validity, effect, interpretation, performance or non-performance of, or the legal relationships established by, this Deed; and (ii) any non-contractual obligations arising out of or in connection with this Deed. For such purposes, each Party irrevocably submits to the jurisdiction of the English courts and waives any objection to the exercise of such jurisdiction.

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Schedule 1

Form of Amended and Restated Receivables Purchase Agreement

16 June 2023

(as amended and restated on 13 October 2023, as further amended on 14 November 2023, 12 December 2023, 17 September 2024, and as further amended and restated on 12 December 2024)

PAYPAL (EUROPE) S. R. L. ET CIE, S.C.A.

as

Seller

ALPS PARTNERS S. R. L.

as

Purchaser

BNY MELLON CORPORATE TRUSTEE SERVICES LIMITED

a

s

Security Agent

PAYPAL (EUROPE) S. R. L. ET CIE, S.C.A.

as

Receivables Manager

PAYPAL UK LTD

as Receivables Manager

AVEGA S. R. L.

as

Back-Up Receivables Manager Facilitator

ALPS PARTNERS (HOLDING) S. R. L.

as

Class C Lender

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THIS RECEIVABLES PURCHASE AGREEMENT

(this

Agreement

) was made on 16 June 2023 (and is amended and restated on 13 October 2023)

BETWEEN

:

(1)

PAYPAL (EUROPE) S.À R.L. ET CIE, S.C.A.

, a corporate partnership limited by shares (

société en commandite par actions

) incorporated under the laws of the Grand Duchy of Luxembourg (

Luxembourg

), having its registered office at 22-24 Boulevard Royal, L-2449 Luxembourg, Luxembourg and registered with the Luxembourg trade and companies register under number B118.349, acting through and represented by its managing general partner PayPal (Europe) S.à r.l., a private limited liability company (

société à responsabilité limitée

) incorporated under the laws of Luxembourg, having its registered office at 22-24 Boulevard Royal, L-2449 Luxembourg, Luxembourg and registered with the Luxembourg trade and companies register under number B127.485 (the

Seller

);

(2)

ALPS PARTNERS S.À R.L.

, a private limited liability company (

société à responsabilité limitée

) incorporated under the laws of Luxembourg, with its registered office at 2, rue Edward Steichen, L- 2540 Luxembourg, Luxembourg and registered with the Luxembourg trade and companies register (

Registre de commerce et des sociétés, Luxembourg

) under number B277050, and subject, as an unregulated securitisation undertaking (

organisme de titrisation

), to the Luxembourg act dated 22 March 2004 on securitisation, as amended (the

Securitisation Act

2004

) (the

Purchaser

);

(3)

BNY MELLON CORPORATE TRUSTEE SERVICES LIMITED

, acting through its office at 160 Queen Victoria Street, London EC4V 4LA, United Kingdom (in its capacity as security agent for the Secured Creditors, the

Security Agent

which expression shall include such company and all other persons or companies for the time being acting as the security agent or security agents under the Security Documents);

(4) ;

PAYPAL (EUROPE) S.; R.L. ET CIE, S.C.A.

, a corporate partnership limited by shares (

soci; en commandite par actions

) incorporated under the laws of Luxembourg, having its registered office at 22-24 Boulevard Royal, L-2449 Luxembourg, Luxembourg and registered with the Luxembourg trade and companies register under number B118.349, acting through and represented by its managing general partner PayPal (Europe) S.; r.l., a private limited liability company (

soci; ; ; responsabilit; limit;e

) incorporated under the laws of Luxembourg, having its registered office at 22-24 Boulevard Royal, L-2449 Luxembourg and registered with the Luxembourg trade and companies register under number B127.485 (a

Receivables Manager

);

(5) ;

PAYPAL UK LTD

,

a private limited company incorporated under the laws of England and Wales (registered number 14741686), having its registered office at Whittaker House, Whittaker Avenue,

Richmond-Upon-Thames, Surrey, United Kingdom, TW9 1EH (a

Receivables Manager)

);

(6) ;

AVEGA S.; R.L.

, a private limited liability company (

soci; ; ; responsabilit; limit;e

) incorporated under the laws of Luxembourg, Luxembourg having its registered office at 2, rue Edward Steichen, L-2540 Luxembourg and registered with the Luxembourg trade and companies register under number B123099 (the

Back-Up Receivables Manager Facilitator

); and

(7) ;

ALPS PARTNERS (HOLDING) S.; R.L.,

a private limited liability company (

soci; ; ; responsabilit; limit;e

) incorporated under the laws of Luxembourg, with its registered office at 2, rue Edward Steichen, L- 2540 Luxembourg, Luxembourg and registered with the Luxembourg trade and companies register (Registre de commerce et des soci;s, Luxembourg

) under number B276993 (the

Class C Lender

),

each a

Party

and together the

Parties

.

WHEREAS

: The Seller has agreed to offer to sell and the Purchaser has agreed to accept the Seller's offer in respect of the Seller's whole right, title, interest and benefit in and to the Receivables and any Related Rights (without notice of such sale and purchase being given to Borrowers prior to the

occurrence of a Notification Event) for the consideration and upon the terms and subject to the conditions of this Agreement.

IT IS HEREBY AGREED

as follows:

1. Definitions and Interpretation

1.1 Capitalised terms used but not otherwise defined in this Agreement shall have the meanings given in Schedule 22 (

Definitions

), except so far as the context requires otherwise.

1.2 In this Agreement unless the context otherwise requires:

(a) references to a person include any individual, firm, body corporate (wherever incorporated), government, state or agency of a state or any joint venture, association, partnership, works council or employee representative body (whether or not having separate legal personality);

(b) references to a paragraph, Clause or Schedule shall refer to those of this Agreement unless stated otherwise;

(c) headings do not affect the interpretation of this Agreement;

(d) the singular shall include the plural and vice versa; and references to one gender include all genders;

(e) any reference in this Agreement to a time and/or day shall be to the then applicable time and/or day in (i) Luxembourg in respect of the EU Receivables and (ii) London in respect of the UK Receivables;

(f) subject to Clause 1.3, references to any English law legal term or concept shall, in respect of any jurisdiction other than England and Wales, be construed as references to the term or concept which most nearly corresponds to it in that jurisdiction;

(g) any phrase introduced by the terms including, include, in particular or any similar expression shall be construed as illustrative and shall not limit the sense of the words preceding those terms;

(h) * * *;

(i) any indemnity or covenant to pay (for the purposes of this paragraph (i), a

Payment Obligation

) being given on an after-Tax basis; means that the amount payable pursuant to such Payment Obligation (for the purposes of this paragraph (i), the

Payment

) shall be calculated in such a manner as will ensure that, after taking into account:

(i) any Tax required to be deducted or withheld from the Payment;

(ii) the amount and timing of any additional Tax which becomes payable by the recipient of the Payment as a result of the Payment being